

EVICTIION PROCESS — SC

For: John Doe

Understanding the process reduces fear and helps you prepare. This is a general timeline — your specific dates are on your summons.

1. Notice *(5-30 days)*

Landlord serves written notice (5 days for nonpayment, 30 days for month-to-month).

2. Application for Ejectment *(After notice)*

Landlord files in Magistrate Court. You receive rule to show cause.

3. File Answer *(10 days)*

YOU ARE HERE. Answer must be filed within 10 days of service.

4. Trial *(Within 10-30 days)*

Magistrate judge hears case. Bring all evidence.

5. Judgment *(Day of trial)*

If you lose, judgment for ejectment. You have 5 days to appeal.

6. Writ of Ejectment *(5+ days after judgment)*

Sheriff executes eviction after appeal period.

IMPORTANT: This timeline is a general guide. Your specific deadlines and procedures depend on your state, county, and case type. Read your summons carefully. If you do not understand something, ask the court clerk or a legal aid attorney.

IMPORTANT: This document is provided for informational purposes only. It is not legal advice. If you need legal advice, contact a licensed attorney.
You are responsible for your own case and what you say in court.